

MORTGAGE
LONG FORM

Property Appraisers Parcel identification
(Folio) Number(s):

To Have and to Hold the same, together with the tenements, hereditaments and appurtenances thereto belongings, and the rents, issues and profits thereof unto the mortgagee, in fee simple.

And the mortgagor covenants with the mortgagee that the mortgagor is indefeasibly seized of said land in fee simple; that the mortgagor has good right and lawful authority to convey said land as aforesaid; that the mortgagor will make such further assurances to perfect the fee simple title to said land and will defend the same against the lawful claims of all persons whomsoever; and that said land is free and clear of all encumbrances.

That this Mortgage Deed is solely to secure future advances which may be made by the mortgagee to the mortgagor up to and including the amount of _____ DOLLARS (_____) and interest thereon at EIGHTEEN percent (18%) per annum. That all the present time, the mortgagee has not loaned the mortgagor any money or other thing of value, and as such, the present outstanding debt from the mortgagor to the mortgagee is Zero Dollars. The mortgagee may loan to the mortgagor up to and including the amount of _____ THOUSAND DOLLARS (_____) and interest thereon at EIGHTEEN percent (18%) per annum, upon the occurrence of the stated contingency: Upon the forfeiture or estreature of the surety bond or bonds posted on behalf of _____, defendant in Case No. _____ in the Court of _____ County, Florida, by mortgagee. or upon payment of any expenses incurred by the mortgagee to produce the defendant before the appropriate court or courts of competent jurisdiction in the above cause.

Provided Always, that if said mortgagor shall pay unto said mortgagee the certain promissory note hereinafter substantially copied or identified, to wit:

CONTINGENT PROMISSORY NOTE

C a s e N o : _____ **B O N D A M O U N T :** _____ **C O U R T :** _____
_____ FL on _____, for value received.

Promise to pay to the order of O'SHAUGHNAHILL SURETY & INSURANCE INC.
Dollars, at 428 S. CONGRESS AVENUE WEST PALM BEACH
FL 33406, if and only if the following stated contingency occurs:

Upon the forfeiture or estreature of the surety bond or bonds posted on behalf of _____ defendant in Case No. _____ in the CIRCUIT Court of _____ County, Florida, by mortgagee. or upon payment of any expenses incurred by the mortgagee to produce the defendant before the appropriate court or courts of competent jurisdiction in the above cause. with interest thereon at the rate of EIGHTEEN percent (18%) per annum, from the occurrence of the above stated contingency, until fully paid. Interest payable semi-annually. The maker and endorser of this note further agree to waive demand, notice of non-payment and protest; and in case suit shall be brought for the collection hereof or the same has to be collected upon demand an attorney, to pay reasonable attorney's fees and assessable costs, for making such collection. Deferred interest payments to bear interest from maturity at EIGHTEEN percent (18%) per annum, payable semi-annually.

It is further agreed and specifically understood between the parties to this Note that there is presently no outstanding loan or debt represented by this Promissory Note, and that this Note is given only to secure future advances up to and including _____ DOLLARS plus interest.

It is further agreed and specifically understood that this Note shall become null and void in the event said defendant _____ shall appear in the proper court at all the time or times so directed by the Judge or Judges of competent jurisdiction until the obligations under the appearance bond or bonds posted on behalf of the defendant have been fulfilled and the surety discharged o/ all liability thereunder in writing, otherwise to remain in full force and effect.

X _____ (_____)

X _____ (_____)

Date: _____

and shall perform, comply with and abide by each and every the agreements, stipulations, conditions and covenants thereof, and of this mortgage and the estate hereby created, shall cease, determine and be null and void.

And the mortgagor hereby further covenants and agrees to pay promptly when due the principal and interest and other sums of money provided for in said note and this mortgage, or either; to pay all and singular the taxes and assessments, levies, liabilities, obligations and encumbrances of every nature on said property; to permit, commit or suffer no waste, impairment or deterioration of said land or the improvements thereon at any time; to keep the buildings now or hereafter on said land fully insured in a sum of not less than the fair market value of such buildings in a company or companies acceptable to the mortgagee, the policy or policies to be held by and payable to said mortgagee and in the event any sum of money becomes payable by virtue of such insurance the mortgagee shall have the right to receive and apply the same to the indebtedness hereby secured accounting to the mortgagor for any surplus; to pay all costs, charges and expenses, including lawyer's fees and title searches, reasonably incurred or paid by the mortgagee because of the failure of the mortgagor to promptly and fully comply with the agreements, stipulations, conditions and covenants of said note and this mortgage. or either; to perform, to comply with and abide by each and every the agreements, stipulations, conditions and covenants set forth in said note and this mortgage or either. In the event the mortgagor fails to pay when due any tax, assessment, insurance premium or other sum of money payable by virtue of said note and this mortgage, or either, the mortgagee may pay the same, without waiving or affecting the option to foreclose or any other right hereunder, and all such payments shall bear interest from date thereof at the highest lawful rate then allowed by the laws of the State of Florida.

If any sum of money herein referred to be not promptly paid within twenty (20) days next after the same becomes due, or if each and every the agreements, stipulations, conditions and covenants of said note and this mortgage, or either, are not fully performed, complied with and abided by, then the entire sum mentioned in said note. and this mortgage, or the entire balance unpaid thereon, shall forthwith or thereafter at the option of the mortgagee become and be due and payable, anything in said note or herein to the contrary notwithstanding. Failure by the mortgagee to exercise any of the rights or options herein provided shall not constitute a waiver of any rights or options under said note or this mortgage accrued or thereafter accruing.

In Witness Whereof, the said mortgagor has hereunto signed and sealed these presents the day and year first above written.

Signed, sealed and delivered in the presence of:

_____ Witness Signature (as to Mortgagee)	_____ Mortgagee Signature
_____ Printed Name	_____ Printed Name
_____ Witness Signature (as to Mortgagee)	_____ Post Office Address
_____ Printed Name	_____ _____
_____ Witness Signature (as to co-Mortgagee).	_____ Co-Mortgagee Signature.
_____ Printed Name	_____ Printed Name
_____ Witness Signature (as to co-Mortgagee.)	_____ Post Office Address
_____ Printed Name	_____ _____

STATE OF _____) I hereby Certify that on this day, before me, an officer duly authorized
COUNTY OF _____) to administer oaths and take acknowledgements, personally appeared

known to me to be the person(s) described in and who executed the foregoing instrument, who acknowledged before me that
_____ executed the same, and an oath was not taken.

(Check one) _____ Said person(s) is/are personally known to me.
_____ Said person(s) provided the following type of Information: _____

NOTARY SEAL

Witness my hand and official seal in the County of _____ and
State of Florida on this _____ day of _____, 20__.

Notary Signature _____

Witness (printed)

Witness (address)

Witness (printed)

Witness (address)

Witness (printed)

Witness (address)

Witness (printed)

Witness (address)